

## Ram Sumer v. State of U.P. — demand and recovery citation relegated to clause 6.14

Allahabad High Court · Division Bench · 2 August 2018 · WRIT - C No. - 25930 of 2018 · **Writ disposed of; petitioner directed to apply under clause 6.14.**

### HEADNOTE

Without examining a demand notice and recovery citation for Rs. 69,312, the High Court disposed of the writ by directing the consumer to apply under clause 6.14 of the U.P. Electricity Supply Code, 2005 within 15 days. Any such application is to be decided by a reasoned speaking order within 30 days of presentation of a certified copy of the order.

### FACTUAL SUMMARY

Ram Sumer challenged a demand notice and recovery citation dated 25 June 2018 for Rs. 69,312 issued by the electricity authorities. He claimed that under a one-time settlement with the Electricity Department he had already deposited the dues, but remained willing to pay if granted relief by way of easy instalments. Counsel for the department submitted that the petitioner had an alternative remedy under clause 6.14 of the Electricity Supply Code, 2005, and that any such application would be entertained.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.14

instalment-facility

#### HOLDING

A consumer impugning a demand notice and recovery citation, and seeking instalment facility, is to apply under clause 6.14 of the U.P. Electricity Supply Code, 2005 rather than obtain writ relief on merits. If the application is made within 15 days, the concerned authority shall decide it by a reasoned speaking order within 30 days of presentation of a certified copy of the High Court order. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — WHETHER THE RS. 69,312 DEMAND AND RECOVERY CITATION WAS VALID, AND WHETHER THE DUES STOOD DISCHARGED UNDER THE ONE-TIME SETTLEMENT**

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